

25STCV38360 25STCV38360

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-09-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C507%2C09%2F18%2F2026

Source SHA-256: 2baf67bf9a0fb76b3985ab3239b040bd0aebef3ffa2c347ecd56c2e89cea2b19

Case Number: 25STCV38360 Hearing Date: September 18, 2026 Dept: 507

TENTATIVE RULING:

The Motion to Quash Service of Summons and Dismiss the Complaint for Lack of Jurisdiction is GRANTED.

Moving party to give notice, unless waived.

LEGAL STANDARD: "Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant." (AO Alfa-Bank v. Yakovlev (2018) 21 Cal.App.5th 189, 202 [internal citations omitted].) "To establish personal jurisdiction, compliance with statutory procedures for service of process is essential." (Kremerman v. White (2021) 71 Cal.App.5th 358, 371.) Defendant's knowledge of the action does not dispense with statutory requirements for service of summons. (Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466.)

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow" may move "to quash service of summons on the ground of lack of jurisdiction of the court over him or her" that results from lack of proper service. (Code of Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581.)

A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20, subd. (a)(3).) Once a challenge to a court's personal jurisdiction is filed, "the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence. This may be done through presentation of declarations, with opposing declarations received in response." (CenterPoint Energy, Inc. v. Superior Court (2007) 157 Cal.App.4th 1101, 1118 (citing Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568).) "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

When jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that "minimum contacts" exist between defendant and the forum state to justify imposition of personal jurisdiction. (Mihlon v. Superior Court (1985) 169 Cal.App.3d 703, 710.) An unverified complaint has no evidentiary value in determination of personal jurisdiction, but such pleading has limited cognizable significance as "a material fact, in that it defines the cause of action, the nature of which has some bearing upon the decision whether it is fair and reasonable to require the nonresident parties to appear and defend in this state. But the pleader has no burden of proving the truth of the allegations constituting the causes of action in order to justify the exercise of jurisdiction over nonresident parties." (Ibid.) The plaintiff need only present facts demonstrating that the conduct of defendants related to the pleaded causes is such as to constitute constitutionally cognizable "minimum contacts." (Ibid.)

DISCUSSION:

Defendant moves to quash service of summons and to dismiss the complaint for lack of personal jurisdiction. Defendant argues that the Court lacks both general and specific jurisdiction over Defendant. Defendant argues that Plaintiff has the burden to demonstrate facts justifying the Court's exercise of in personam jurisdiction. (See *In Re Automobile Antitrust Cases* (2005) 135 Cal.App.4th 100, 110.)

Personal jurisdiction may be general or specific. A defendant is subject to general jurisdiction when it has substantial, continuous and systematic contacts in the forum state, i.e., its contacts with the forum are so wide-ranging that they take the place of a physical presence in the state. (*Strasner v. Touchstone Wireless Repair & Logistics, LP* (2016) 5 Cal.App.5th 215, 222.) A corporation's state of incorporation and principal place of business are paradigmatic indications of where the corporation is "at home." (*Preciado v. Freightliner Custom Chassis Corp.* (2023) 87 Cal.App.5th 964, 976.) A defendant corporation's substantial sales in a state are insufficient to establish general jurisdiction, as the general jurisdiction analysis turns on the nature of the defendant's continuous corporate operations within a state. (*Strasner, supra*, 5 Cal.App.5th at pp. 222–223.)

A defendant may be subject to specific jurisdiction of the forum if the defendant purposefully availed itself of the forum benefits and the controversy is related to or arises out of defendant's contacts with the forum. (*Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 446.) When a corporation purposefully avails itself of the privilege of conducting activities within the forum State, it has clear notice that it is subject to suit there, and can act to alleviate the risk of burdensome litigation by procuring insurance, passing the expected costs on to customers, or, if the risks are too great, severing its connection with the state. (*Id.* at pp. 446-447.)

Defendant HWHI contends that the court lacks general jurisdiction over it because it is not incorporated in California, does not have its principal place of business in California, and because Defendant does not have any substantial, continuous or systematic activities in California that would make it subject to this Court's general jurisdiction. Defendant HWHI submits evidence that it is incorporated in Delaware, headquartered in Virginia, and that does not conduct any business in California, have any offices in California, or have an agent for service of process in California. (*Smith Decl.*, ¶¶ 7-8.)

Defendant HWHI further argues that the court lack specific jurisdiction over it because none of the causes of action are related to or arise out of its contacts in California, as HWHI does not have any connection with Plaintiff, the alleged incident, or the subject hotels. HWHI submits evidence that it is the parent holding company of the Hilton Hotel, it has no employees, and is the issuer of common stock listed for trading on the New York Stock Exchange. (*Id.* at ¶¶ 5-6.) Defendant submits evidence that it does not conduct business in California, have officers in California, or have an agent for service of process in California. (*Id.* at ¶ 8.) Particularly germane to this matter, HWHI submits evidence that it does not administer the Hilton Honors rewards loyalty program, does not establish or govern any rules, policies, etc. for benefit for Hilton-branded hotels, and that it is not a party to any agreement relating to the administration of the Hilton Honors rewards loyalty program or the alleged incident. (*Id.* at ¶¶ 9-11.) Lastly, HWHI provides evidence that it is never owned, operated, managed, or control the operations of the subject hotels or their personnel and that each hotel is instead independently owned by franchises. (*Id.* at ¶¶ 11-15.)

"When a defendant challenges jurisdiction through a motion to quash, the plaintiff bears the burden to demonstrate facts, as to each nonresident defendant, justifying the exercise of jurisdiction by a preponderance of evidence." (*Strasner, supra*, 5 Cal.App.5th at pp. 221-222.) The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate. (*Ibid.*) The plaintiff cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts. (*Ibid.*)

Plaintiff has not opposed this motion. As such, the Court has no evidence outside the allegations in the complaint that would permit it to conclude that it has personal jurisdiction over HWHI. Accordingly, Plaintiff has not met its burden to demonstrate that "minimum contacts" exist between Defendant HWHI and the forum state to justify imposition of personal jurisdiction. (*Mihlon, supra*, 169 Cal.App.3d at p. 710.)

Thus, the Motion to Quash Service of Summons and Dismiss the Complaint for Lack of Jurisdiction is GRANTED.